# ARB 005/2025 Nashrah v (1) Najem (2) Nex

SEPTEMBER 10, 2025 ARBITRATION - ORDERS

**Claim No: ARB 005/2025**

**IN THE DUBAI INTERNATIONAL FINANCIAL CENTRE COURTS**

**IN THE COURT OF FIRST INSTANCE**

BETWEEN

**NASHRAH**

Claimant

and

**(1) NAJEM**

**(2) NEX**

Defendants

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**ORDER WITH REASONS OF H.E. CHIEF JUSTICE WAYE MARTIN**

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**UPON** the Reasons for the Order of H.E. Justice Shamlan Al Sawalehi issued on 6 February 2025 dated 19 February 2025

**AND UPON** the Order of H.E. Justice Shamlan Al Sawalehi dated 23 June 2025 (the "Order")

**AND UPON** the Defendants' Application No. ARB-005-2025/6 dated 12 August 2025 seeking an extension of time to file a permission to appeal pursuant to RDC 44.13 (the "EOT Application")

**AND UPON** the Defendants' Appeal Notice dated 12 August 2025 seeking permission to appeal the Order (the "Permission to Appeal Application")

**AND UPON** the Claimant's evidence in answer dated 29 August 2025

**AND UPON** the Claimant's written submissions in opposition dated 29 August 2025

**AND UPON** the Defendant's evidence in reply dated 5 September 2025

**AND UPON** the Appeal hearing in CA-004-2025 listed before H.E. Chief Justice Wayne Martin, H.E. Justice Robert French and H.E. Justice Sir Peter Gross on 16 October 2025 (the "Hearing")

**IT IS HEREBY ORDERED THAT:**

1. The EOT Application is granted.

2. The Permission to Appeal Application is granted in respect of Grounds 2, 3 and 4.

3. The Permission to Appeal Application is refused in respect of Grounds 1 and 5.

4. The appeal shall be listed for a hearing at the same time as the appeal Hearing listed in matter CA-004-2025.

5. As the grounds upon which permission to appeal has been granted are in substance identical to three of the grounds in the appeal in CA-004-2025:

(a) Only one hearing bundle will be prepared in respect of both appeals; and

(b) The parties will file single skeletons in respect of both appeals.

6. The costs of the EOT Application and the Permission to Appeal Application shall be reserved to the Court of Appeal.

Issued by:

**Delvin Sumo**
Assistant Registrar
Date of Issue: 10 September 2025
At: 9am

## SCHEDULE OF REASONS

1. There are two applications before the Court - an application for an extension of time dated 12 August 2025 (the "EOT Application") within which to appeal and an application for permission to appeal dated 12 August 2025 (the "Permission to Appeal Application").

2. The EOT Application is brought on the ground that the Applicants were under the mistaken belief that the application for permission to appeal from the orders earlier made by the Judge at first instance for reasons published on 19 February 2025 would, if granted, confer permission to appeal from the Judge's orders dismissing the objection to jurisdiction.

3. The application for permission to appeal from the Orders made by the Judge for reasons published on 19 February 2025 was granted and includes grounds (6.7 and 9) which correspond almost exactly to grounds 2-3 and 4 in the current application for permission.

4. When the Applicants realised their mistake, the EOT Application was brought promptly. The period of delay is not substantial, being in the order of four weeks or so. The Respondent has not established any material prejudice arising from the delay and does not contend that it changed its position in reliance upon an assumption that no appeal would be brought - it being well aware that the issue of the court's jurisdiction was contested in CA-004-2025.

5. Although the Respondent contends that it will suffer prejudice in the form of a lack of finality in respect of the order made dismissing the objection to jurisdiction, prejudice in that form will be suffered in every case in which an extension of time within which to appeal is granted. Further, in this case, prejudice of that kind is not significant, given that the challenge to the jurisdiction of the court has been on foot well before the decision which is now under appeal.

6. The Respondent further contends that it would suffer prejudice in the form of being distracted from its preparation of the appeal in CA-004-2025, which is to be heard next month. That contention is not accepted, as the grounds of appeal are in substance coextensive with the grounds which must be met in the existing appeal and directions can and will be made for the joint hearing of the appeals and the submission of single skeletons covering both appeals. In those circumstances, the additional work involved will be negligible.

7. The Permission to Appeal Application, if granted, would prevent a potential anomaly from arising. If the appeal against the grant of the injunction succeeds on grounds relating to the jurisdiction of the court, the order of the Court of Appeal would be inconsistent with the decision of the judge dismissing the objection to jurisdiction.

8. In these circumstances it is in the interests of justice to extend the time to enable the Permission to Appeal Application to be considered.

9. As noted, three of the grounds of appeal correspond to grounds upon which permission has been granted in respect of the judge's orders granting an injunction. That is to be expected, as the judges reasons for dismissing the objection to jurisdiction were limited to an adoption of the reasons he had earlier given on 19 February 2025 for his decision that the court had jurisdiction.

10. It has previously been held that these grounds of appeal have a real prospect of success. The reasons for that conclusion apply with equal force to this Permission to Appeal Application. Permission to appeal must therefore be granted in respect of these grounds.

11. There are two additional grounds of appeal. The first is not, in substance, a ground of appeal, but rather a reason why permission to appeal should be granted. As permission will be granted, it is otiose and unnecessary. The second additional ground of appeal is premised on the hypothesis that the judge's reasons for dismissing the objection to jurisdiction are different to his reasons for earlier holding that the court had jurisdiction. As there is no basis for that hypothesis, this ground of appeal is also otiose and unnecessary. Accordingly, permission to appeal will be refused in respect of those additional grounds.

12. As the additional work involved in responding to this appeal will be negligible, there is no basis for imposing any further conditions upon the prosecution of this appeal over and above those which have been imposed in respect of CA-004-2025.